

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noemi Martin	Team: Team # 5	CCRB Case #: 200912700	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/14/2009 1:05 PM	Location of Incident: Fulton Street between Brooklyn Avenue and New York Avenue	18 Mo. SOL 2/14/2011	Precinct: 79
Date/Time CV Reported Fri, 08/14/2009 1:33 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/14/2009 1:33 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Rachid Benlhousain	21282	945504	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. An officer			079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rachid Benlhousain	Discourtesy: PO Rachid Benlhousain spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	A . Complainant Uncooperative

Synopsis

On August 14, 2009, at approximately 1:05 PM, § 87(2)(b) § 87(2)(b) was double parked in front of the Citibank located at 1398 Fulton Street in Brooklyn. § 87(2)(b) § 87(2)(b)'s sister, § 87(2)(b) § 87(2)(b) exited the vehicle and went inside the bank, while she waited outside with the car on. An officer identified by § 87(2)(b) § 87(2)(b) as PO Rachid Benlhousain approached her driver's side and instructed her to turn off the car. § 87(2)(b) § 87(2)(b) argued that she was going to be just a moment. PO Benlhousain instructed her again to turn off the car. § 87(2)(b) § 87(2)(b) refused again, arguing that she was going to move her car anyway, so there was no need to turn it off. PO Benlhousain then placed his hand on his gun (did not remove from the holster) and allegedly said "Turn off the fucking car now" (**allegation A**). § 87(2)(b) § 87(2)(b) complied and PO Benlhousain then issued her a summons for double parking.

On August 13, 2009, § 87(2)(b) § 87(2)(b) filed this complaint with the CCRB via the call processing system. On August 14, 2009, § 87(2)(b) § 87(2)(b) also emailed the complaint to the CCRB. On August 20, 2009, an initial "please call" letter was sent. On August 21, 2009, a phone call was placed to § 87(2)(b) § 87(2)(b) but no message could be left on her phone, because the mailbox was full. On August 24, 2009, a second phone call reached § 87(2)(b) § 87(2)(b) and a phone statement was obtained. She did not witness the incident and was not a victim in this case. On August 26, 2009, a third call was made to § 87(2)(b) § 87(2)(b) but the phone rang out and no message could be left. On August 31, 2009, § 87(2)(b) § 87(2)(b) was contacted and she provided a phone statement. § 87(2)(b) § 87(2)(b) is a college student who resides in West Virginia. She will not be back in New York City until the end of November. On September 1, 2009, a fifth call was placed to § 87(2)(b) § 87(2)(b) in attempts to have her provide the CCRB with a notarized statement. However, the phone rang out and no message could be left. A final "please call" letter was sent to § 87(2)(b) § 87(2)(b) on the same day. On September 2, 2009, a final sixth call was placed to § 87(2)(b) § 87(2)(b) and a detailed message was left on her voicemail. She was advised to contact the CCBR by September 4, 2009 or her case may be closed without further investigation. As of the date that this report was written, § 87(2)(b) § 87(2)(b) has not contacted the CCRB.

§ 87(2)(g) § 87(2)(g).
On September 8, 2009, a search of the NYC Department of Correction website did not reveal that § 87(2)(b) § 87(2)(b) is currently incarcerated. It is therefore recommended that **allegation A** be closed as *complainant uncooperative*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: